1. POLICY STATEMENT:

   a. In accordance with the Drug Free Workplace Act of 1988 and in order to ensure ____ operates in a safe and conscientious manner, _____ employees are to be free of Mood-Altering Substances in the workplace.

   b. All ____ employees are prohibited from illegally using, selling, transmitting, offering, furnishing, manufacturing or possessing implements and paraphernalia for drug use and/or Mood-Altering Substances while working on Property owned or leased by ____.

   c. It is prohibited for _____ employees to report to work (including on-call or call back) affected or impaired by Mood Altering Substances. Compliance with this policy is monitored through the use of substance abuse screening tests. Employees who fail to comply with the policy and/or testing requests are subject to immediate termination.

2. PURPOSE:

   The purpose of this policy is to establish consistent and clear expectations related to the prohibition of illegal drugs and/or Mood Altering Substances in the workplace.

3. SCOPE:

   This policy applies to all _____ wholly owned or controlled subsidiaries.

4. DEFINITIONS:

   a. Affected by Mood Altering Substances: being influenced by any substance to the extent that it may affect the safety of patients, residents, co-workers, or members of the public, the employee's job performance, or the security and safe operation of _____ property and facilities. Symptoms include, but are not limited to, awkward behavior, misbehavior, or obvious suspected impairment of physical or mental abilities, such as slurred speech or difficulty in maintaining balance.

   b. Alcohol: a colorless volatile flammable liquid, synthesized or obtained by fermentation of sugars and starches and widely used, either pure or denatured, as a solvent and in drugs, cleaning solutions, explosives, and intoxicating beverages.

   c. Investigative Leave: a period of time in which the employee is not allowed to work pending the completion of the investigation and testing results

   d. Leadership: For purposes of this policy, Leadership is defined as a title equivalent to supervisor or above.

   e. Medical Review Officer (MRO): a licensed physician who has knowledge of substance abuse disorders and has appropriate medical training to interpret and evaluate an individual's positive test results together with his or her medical history and any other relevant biomedical information.

   f. Mood Altering Substance: Alcohol, inhalants, bath salts, narcotics, depressants, stimulants, hallucinogens, marijuana, cocaine, opiates, phencyclidine (PCP), amphetamines, or any other controlled substance as defined by state and federal law, which is capable of producing physical, mental, emotional, behavioral, or function altering effects in persons taking them. The term does not include the use of a controlled substance pursuant to a Valid Prescription taken in accordance with the prescription's instructions.

   g. Property: Includes all _____ locations and/or other owned or leased properties, even if other tenants of leased properties do not maintain a similar policy; and adjoining or neighboring businesses.

   h. Reasonable Cause or Suspicion: good faith belief based upon the relevant facts including, but not limited to, patient/resident/member of the public complaints, suspected theft or diversion of drugs, work injuries/accidents,

and impaired performance and/or observations that an employee's behavior/performance is impaired or Affected by Mood Altering Substances.

i. Substance Abuse Screening or Testing: the examination of urine and blood samples.

j. Valid Prescription: a legitimately prescribed medication, legally obtained in the employee's name, including over-the-counter drugs, used in accordance with the printed instructions and for its intended purpose.

5. PROCEDURE:

a. General Information:

(1) An employee is subject to corrective action, up to and including termination of employment, for the use of Mood-Altering Substances on _____ property or for reporting to duty under the influence of Mood-Altering Substances.

(2) Any employee who wishes to receive information regarding drug and/or Alcohol counseling and rehabilitation may contact HR, Employee Health Services or the Employee Assistance Program ("EAP").

b. _____ employees are responsible for the following:

(1) Present to work in a condition both mentally and physically capable to perform one's assigned job in a safe manner. This includes being free from the effects of Mood Altering Substances.

(2) Seek assistance through the EAP before substance abuse problems affect his/her behavior or work performance and thereby jeopardize employment.

(3) Promptly report to his/her manager any knowledge or observance of another employee's condition which may impair job performance or pose a threat/hazard to the employee, the safety and welfare of patients/residents, other employees, or members of the public.

(4) Cooperate with requests for information as needed during an investigation.

c. _____ Leadership is responsible for the following:

(1) Understand and inform employees of this policy and applicable guidelines and consequences.

(2) Implement these procedures and stay informed of the corrective progress of any affected employees.

(3) Investigate a suspicion of diversion of narcotics with each incident.

(4) Comply with state licensure regulations including notification requirements.

d. The EAP is responsible for the following:

(1) Educate and serve in an advisory capacity to employees concerning the interpretation and application of this substance abuse procedure.

(2) In the event an employee comes forward on his/her own accord, while not impaired on duty and not as the result of pending discipline or an active investigation, EAP assists the employee with the completion of a Substance Abuse Rehabilitation Agreement and recommends a course of treatment.

e. HR is responsible for the following:

(1) Notify Internal Audit/Risk Management of all suspected cases.

(2) Notify the employee's manager of verified positive drug and Alcohol results.

(3) Randomly send employees for testing who have signed the employee Substance Abuse Rehabilitation Agreement.

f. Manager or designated member of Leadership implements this policy after regular business hours or in the absence of an employee's manager.

g. All involved parties maintain strict employee confidentiality of this process.

h. Fitness for Duty Medical Evaluations and Drug Testing:

(1) _____ requires uniform drug testing for all prospective employees as part of the pre-employment screening process. Any applicant who refuses to submit to a drug and/or Alcohol-screening test is denied employment.

(2) Each employee is required to sign a form declaring that he or she is not currently using illegal drugs, abusing Alcohol, prescription drugs or over the counter drugs during his or her employment. Employees who refuse to submit to a drug and/or Alcohol-screening test will be subject to discipline, up to and including termination of employment.

(3) _____ conducts testing of an employee who is reasonably suspected of using Alcohol or illegally using drugs or abusing prescription/nonprescription medication. Testing includes a fitness for duty medical evaluation and/or drug and Alcohol screening test. Leaders document observed behavior with specific objective facts. The Drug and Alcohol Use Observation Checklist (see Attachment A) is completed and given to HR. The manager also meets with the employee in private to share the manager's observations, document the employee's response, and direct the employee to submit to a fitness for duty medical evaluation and/or drug and Alcohol screening test. Whenever feasible, another manager is present during the private meeting with the employee.

(4) Following an incident where safety procedures were not followed, property was damaged or an injury occurred; a fitness for duty medical evaluation and drug and/or Alcohol screening tests are required of employee(s) involved.

(5) Testing is required if illegal drugs, drug paraphernalia or unauthorized alcohol is found on _____ Property, at any location rendering services or conducting _____ business or used by an employee or in or on an employee's property, clothing, vehicle, personal bags, lockers, or belongings on _____ property.

i. The following steps are followed when an employee comes forward on his/her own accord to seek Substance Abuse Rehabilitation:

(1) The manager contacts HR and an EAP representative regarding the completion of a Substance Abuse Rehabilitation Agreement and the recommended treatment.

(2) An EAP consultant assists the employee in completing the agreement and identifying treatment options and enrolling in appropriate agency program, if licensed.

j. Testing Refusal, Timing, and Conditions:

(1) Employees directed to submit to a fitness for duty medical evaluation and/or drug and Alcohol screening test are required to sign an Authorization allowing _____ to obtain and review the testing report and related documents. An employee who refuses to submit to a medical evaluation or drug or Alcohol-screening test is considered to have voluntarily resigned from employment with _____ and will not be eligible for rehire.

(2) Employees requested to submit to a medical evaluation and/or drug and Alcohol screening test must do so immediately or by a time otherwise specified by the requestor. Employees do not delay in taking the test or otherwise cause the test to be delayed. If transportation is necessary for the employee to get to the location where the specimen is collected, the employee is not allowed to drive. The employee will take an UBER if transportation is not readily available. The employee is placed on Investigative Leave pending the outcome of the test.

k. Whenever there is Reasonable Cause or Suspicion to believe an employee's ability to perform the job may be impaired, the following actions are taken:

(1) Document observed behavior with specific, objective facts on the Drug and Alcohol Use Observation Checklist (see Attachment A).

(2) Judgment/observation is confirmed by an additional member of Leadership.

(3) Meet with the employee in private to share the observations and document the employee's reaction.

(4) Leadership or other appropriate resource is notified to transport the employee to the approved facility for drug and/or Alcohol testing. Provisions for same sex rider to accompany the impaired employee are made by Leadership.

(5) The employee is not permitted to have contact with others until a specimen has been collected.

(6) Upon presentation to the approved facility, Alcohol and drug testing specimens are collected following the approved facility's "chain of custody" protocol.

(7) Upon completion of testing/evaluation or upon refusal of employee to be tested, Leadership arranges for the employee's transportation to the employee's home if required.

(8) The employee is placed on Investigative Leave pending investigation and receipt of test results. Leadership is responsible for advising HR of this fact.

l. Testing Results and Responsive Action:

(1) Alcohol testing is conducted through a single quantitative blood test or a breath Alcohol test. A positive result is a concentration greater than 0.00%.

(2) Drug testing is conducted through urine specimen analysis and the following list is not all inclusive as it will be based on the specific circumstances of the situation:

(a) Marijuana;

(b) Cocaine;

(c) Opiates;

(d) Amphetamines;

(e) Barbiturates;

(f) Benzodiazepines; and

(g) Oxycodone;

(3) All positive tests are confirmed by a quantitative analysis of the analyte found to be positive on the screening test. Results are considered conclusively positive when both the screening and quantitative tests are reviewed by the MRO.

(4) The employee is required to submit to the approved facility proof of any claim of prescription drug use within 48 hours of the specimen collection. Proof consists of a written statement from the employee's physician approving the use of prescription drugs during work hours. If the employee does not report this information within 48 hours, the employee is subject to discipline, up to and including termination of employment.

(5) If the test is positive, the MRO contacts the employee to discuss the results. Once test results are reviewed by the MRO, the final result (positive or negative, with no further description) is communicated and submitted to HR. If the results are negative, the employee receives payment for all lost work time incurred during the Investigative Leave. All test results and related records become a permanent part of the employee's Employee Health record with _____ and not in the HR personnel file.

(6) If a covered licensed or registered health care worker tests positive pursuant to this policy, the appropriate agencies are notified by Leadership.

(7) It is in _____'s sole discretion and as a condition of continued employment, employees who test positive for illegal drug or Alcohol use are required to enter into and complete a drug or Alcohol abuse counseling or rehabilitation program at the cost of the employee. During this time period Leadership may change the employee's job and job assignments. In order to ensure that persons who are enrolled in, or who have successfully completed, a drug or Alcohol counseling or rehabilitation program are no longer engaging in the use or abuse of alcoholic liquor or drugs, random testing is conducted. Any employee refusing to submit to such testing is subject to discipline, up to and including termination. A positive test within one (1) year from the date of the first positive test results in immediate termination of employment. Zero tolerance is imposed on repeat offenders after one (1) year at the discretion of Leadership and HR regarding continued employment.

(8) Employees who test positive for the illegal use or influence of drugs are referred to the EAP. If an employee voluntarily seeks assistance for substance abuse from the EAP or another treating facility, _____ reserves the right to monitor the employee during treatment and recovery in order to ensure the safety and security visitors and staff.

m. The results of any medical evaluation or drug and Alcohol-screening test remain confidential and limited to essential personnel and/or external agency, except as otherwise required by law. Testing reports and related records are forwarded to Employee Health for filing in the employee's Employee Health file.

n. In order to safeguard the health and property of employees, visitors, and members of the public, and to aid in the prevention of the possession, use and sale of illegal drugs and Alcohol in the workplace; _____ reserves the right to question and conduct searches of employees and all other persons entering its premises, and to search the employee's personal belongings to include the employee's vehicle, clothing, personal bags, or belongings, offices, desks, files, lockers, or any other area of the premises on _____ property when there is a Reasonable Suspicion of illegal drug or Alcohol possession, use or sale. Employees who refuse to consent to a search are subject to discipline, up to and including termination. _____ takes into custody any Alcohol or controlled substance or illegal drug or drug paraphernalia found on _____ premises and property and uses it as evidence in disciplinary proceedings. Any non-employee who refuses to consent to a search is refused entry.

o. Due to the severity of drug and Alcohol violations, disciplinary and termination of employment decisions, as well as voluntary resignation determinations, made as a result of violations of this policy are not appealable.

p. Special Considerations:

(1) If an employee is unable to understand any information regarding testing due to a language barrier, an interpreter is provided. If an employee is unable to read, the necessary information/forms are read to the employee.

(2) In the event an employee needs rehabilitative treatment, the employee is financially responsible for such treatment.

(3) Non-_____employees:

(a) Intern participating in education at a _____ facility are NOT subject to this policy. Interns who are suspected or admit to substance abuse or impairment are not allowed to continue, asked to leave the premises, and reported immediately to the proper Leadership.

(b) Temporary/contract service providers are tested if there is a Reasonable Suspicion that such person is under the influence of a Mood Altering Substance. His/her employer is immediately notified.

(c) Temporary/contract service providers are not allowed to work at _____ if he/she has a positive drug screen.

(d) _____ volunteers are NOT subject to this policy. If it is suspected that a volunteer is under the influence of a Mood-Altering Substance, HR or the Supervisor/Manager and/or the Director of Volunteer Services are contacted and action to prevent injury, accident, and unnecessary disruption is taken.

6. ATTACHMENTS:

a. Drug and Alcohol Use Observation Checklist

Drug & Alcohol Use Observation Checklist

Associate Name: _____ Department: _____

Date: _____ Title: _____

Time of Observation: START_____am/pm END _____am/pm

Location:_____

WALKING
___ Stumbling
___ Staggering
___ Falling
___ Unsteady
___Holding on
___Unable to walk
___ Normal

STANDING
___ Swaying
___Rigid
___Feet wide apart
___Sagging knees
___Unable to stand
___Normal

SPEECH
___Shouting
___Silent
___Slow
___Mute
___Slurred
___Incoherent
___Whispering
___Normal

APPEARANCE/DEMEANOR
___Cooperative
___Polite
___Calm
___Talkative
___Excited
___Sarcastic
___Sleepy
___Crying
___Hostile

ACTIONS
___Fighting
___Hostile
___Hyperactive
___Drowsy
___Profanity
___Erratic
___Threatening
___Resisting to answer questions
___Normal

EYES
___Bloodshot
___Watery
___Dilated
___Glassy
___Drooped
___Closed
___Dark Glasses
___Normal

FACE
___Flushed
___Pale
___Sweaty
___Normal

CLOTHING
___Unruly
___Messy
___Dirty
___Neat
___Having odor
___Partially dressed
___Bodily excrement stains

BREATH
___Alcohol odor
___Faint alcohol odor
___No alcohol odor
___Gum
___Candy
___Other

MOVEMENTS
___Fumbling
___Jerky
___Slow
___Nervous
___Hyperactive
___Normal
___Other

OTHER:
_____

_____

Documentation submitted by:

_____
Manager

_____
Manager Signature

_____
Second Manager

_____
Second Manager Signature

_____
Witness

_____
Witness Signature

Immediate actions taken:

_____

_____

_____

_____

Date Submitted: